

CONSTITUTION OF THE FIRST REPUBLIC

- Passed on 29 February 1956 and was promulgated on 23 March 1956.
- Consisted of 234 articles, arranged in 13 parts, short preamble in the beginning and six schedules attached at the end ,covered total of 94 pages.
- Modelled on British pattern and Indian Act of 1935.

NATURE OF THE CONSTITUTION

- Federal Republic
- Parliamentary democracy
- Regulated activities of both central and provincial governments
- Was neither too rigid nor too flexible, could be amended as required by 2/3 majority of parliamentarians

THE PREAMBLE

- The preamble of the constitution was the objective resolution which was adopted by the Constituent assembly in March, 1949.

THE ISLAMIC PROVISIONS

- Pakistan was defined as an “Islamic Republic”, wherein the principles of freedom, equality, tolerance, and social justice as enunciated by Islam, should be fully observed (socio-political order of Islam)
- Islamic provisions will be followed by the state authorities while formulating state policies.
- Steps were to be taken to enable Muslims of Pakistan to order their lives according with the Holy Quran and Sunnah.

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- The President was to be a Muslim.
 - No law shall be enacted ,which is repugnant to the injunction of Islam as laid down in the Holy Quran and the Sunnah: and that the existing laws shall be brought into conformity with such injunctions.
 - Islamic Advisory Council were to be set up.
 - Nothing should affect the personal laws of non-Muslims or their status as citizens.

THE PRESIDENT

ELIGIBILITY

- Should be a Muslim.
- Not less than 40 years of age.

ELECTION/REMOVAL(IMPEACHMENT)

- To be elected by members of National assembly and Provincial assemblies for 5 years.
- Could be eligible for re-election.
- Could not continue more than two consecutive terms.
- Could be checked by $\frac{3}{4}$ members of legislature.

POWERS

- Head of State, not a nominal head but could actively participate in decision making
- Emergency Powers
- Financial powers
- Could Summon, prorogue and Dissolve the assembly.
- Power to appoint the Prime Minister. Provincial Governors and Judges with consent of Chief Justice, Auditor General and Advocate General.

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- Power to release ordinances.
 - Power to pardon, commute of sentences.
 - Ministers, Deputies appointed by President.
 - Official acts could not be challenged.
 - Speaker will be acting President in case of incapacitation or absence.
 - In absence of Prime Minister, powers transferred to President.
 - Limited power to veto.

LEGISLATURE (PARLIAMENTARY SYSTEM)

- Uni-Cameral Legislature known as National Assembly
- Parity in representation was secured for East and West Pakistan
- President, PM and cabinet was held accountable to National Assembly
- 21 years voter age.
- 25 years Candidate age.
- Member could loose his seat in case of consecutive 60 days absence.

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- At least two sessions of National Assembly in a year.
 - At least one session to take place in Dacca.
 - The assembly to choose Speaker and Deputy Speaker from its own members in its first session.
 - Life of Assembly is 5 years but could be dissolved by the President earlier.
 - Election were to take place within 6 months, no by-elections could be delayed beyond 3 months.

FEDERAL STRUCTURE

- Comprised of two Provinces, East and West Pakistan.
- Principle of Parity to two Provinces.
- Division of powers between central and provincial governments in the form of three lists
 - Federal list:-** thirty subjects included Foreign affairs, Defence, Currency, Citizenship, foreign and inter-Provincial trade and Commerce, Insurance, Industries, Postal, Telecommunications, Mineral Oil and Gas.



Provincial List:-Ninety four subjects: Public order, Administration of Justice , Police, Land , agriculture, local governments, education, public health , sanitation, industries, factories, regulations of mines , forest, electricity and other subjects of local interest.

Concurrent List:- matters on which either can legislate
Residuary powers were given to Provinces.

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- Federal list had priority over Provinces list.
 - Provinces could not tax to federal property.
 - In case of ant conflict between central and provincial governments Chief Justice could play a role to settle the matter.
 - Parliament was supreme decision power in case of any conflict.

Judiciary

- Independence of Judiciary was guaranteed.
- There existed only one series of courts throughout the country as provinces did not had separate judicial establishments.
- **Supreme Court:-**Headed by Chief Justice with 6 judges.
- To Interpret the Constitution.
- Had original as well as appellate jurisdiction.
- Had powers to adjudicate in any Dispute between Center and Provinces or vice versa.

- **High Court:-**

- Each Province had a High Court,
- consisted of Chief Justice and other Judges.
- Appointed by the President of Pakistan in consultation with the Chief Justice and were ensured full security of service.
- District courts
- Civil courts
- Magisterial courts

FUNDAMENTAL RIGHTS

- Part II laid down the fundamental rights guaranteed to the citizens of Pakistan.
- State shall not make any law contrary to fundamental rights.
- All fundamental rights were enforceable by Supreme Court and therefore Court was given powers to issue directions, orders or writs of all kinds for the enforcement of any of these rights.

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- All citizens were equal and no one could be deprived of life or liberty except in accordance to law.
 - Freedom of speech and expression was guaranteed but could be restricted by law in the interest of security of Pakistan , decency, Morality, etc.
 - Rights of freedom of assembly and freedom of association were provided.
 - Slavery and forced labor were prohibited.

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- Religious liberties were guaranteed.
 - No person could be forced to pay any special tax, the proceeds of which were to be spent on the propagation or maintenance of any other religion other than his own.
 - Every citizen could move through out the country, and could reside , settle , hold and dispose off property in any part of it.

Abrogation of Constitution

- Constitution was abrogated on October 7, 1958 when the Martial law was proclaimed by General Ayub Khan.



CAUSES OF FAILURE OF PARLIAMENTARY DEMOCRACY

- Sincere efforts were not made to implement the constitution. Elections could not be held under the new constitution and political power was captured by palace intrigues. Nepotism, favoritism and selfishness shook the foundations of the political system.
- Established democratic norms were violated and the political leadership failed to respond to the emerging democratic requirements.

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- **LEADERSHIP CRISIS:** Pakistan faced leadership vacuum after death of Quaid. No such leader emerged who could command confidence of the people and guide them towards the realization of national goals.
- **LACK OF POLITICAL TRAINING:** Democracy is not merely a form of government but a political precept. Democratic process is evolutionary process based on political education and training of people. Such an atmosphere was lacking in Pakistan.

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- **Role of political parties:** Political parties educate masses, represent public opinion and to translate aspirations of people in concrete reality. The behavior of political parties was disrupting and their leaders were repository of colonial rule. Their sole aim was the perpetuation of political hold by fair or foul means.
- **Economic instability:** wealthy class had firm grip on decision making and political corruption, bribery, nepotism and various economic ills disrupted the economic solidarity.

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- **Decline of Muslim league:** Muslim league failed to maintain the majority status and fragmented into small parties.
- **Struggle for power:** there was constant tug of war between head of state and legislature. President Iskandar Mirza continuously interfered parliamentary affairs.
- **Provincial Autonomy:** west Pakistan was merged into one unit and in this sense autonomy of four provinces was curtailed and it also became a cause of failure.

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- **Military and bureaucratic intervention in politics:**
The inept political leadership paved way for military and bureaucratic intervention in political affairs.